

From:
The Office Of The
Pueblo of Picuris Governor



Pueblo of Picuris
P. O. Box 127
Peñasco, New Mexico 87553
(575) 587-2519
Fax: (575) 587-1071

Resolution No.: 2026-10

**A RESOLUTION OF THE GOVERNING BODY OF PICURIS PUEBLO TO STRENGTHEN
ENFORCEMENT AND PENALTIES FOR LITTERING AND ILLEGAL DUMPING WITHIN THE
EXTERIOR BOUNDARIES AND CHECKERBOARD AREAS OF THE PUEBLO; TO ESTABLISH A
SCALED CIVIL PENALTY STRUCTURE; AND TO DIRECT UPDATED PUBLIC NOTICE AND SIGNAGE**

WHEREAS

1. The Pueblo of Picuris exercises inherent sovereign authority to protect its lands, natural resources, public health, and welfare within its exterior boundaries; and
2. The Pueblo's lands, including checkerboard areas, are experiencing increased littering and illegal dumping causing environmental, cultural, and public health harm; and
3. The current civil penalty of \$300 is outdated and insufficient to deter violations; and
4. The Pueblo has a compelling interest in strengthening enforcement mechanisms; and
5. Public awareness and updated signage are necessary to support enforcement and compliance;

NOW, THEREFORE, BE IT RESOLVED

Section 1. Updated Civil Penalties

First Offense: Not less than \$500 - \$1,000

Second Offense: Not less than \$2,500

Third and Subsequent Offenses: Not less than \$5,000

Each day a violation continues may be treated as a separate offense at the discretion of the Tribal Court.

Section 2. Aggravating Factors and Enhanced Penalties

Penalties may increase for:

- Hazardous or toxic dumping

- Cultural or protected areas
- Commercial or large-scale dumping
- Use of vehicles or equipment

Penalties may exceed \$5,000 and include full restitution.

Section 3. Restitution and Remediation

The Court may order:

- Cleanup cost reimbursement
- Environmental restoration
- Community service
- Vehicle or equipment impoundment

Section 4. Jurisdiction and Enforcement

Applies to all persons within the exterior boundaries to the fullest extent of Tribal and federal law.

Enforced by Tribal law enforcement and authorized Pueblo officials. Section 5. Signage and Public Notice

The Pueblo shall install updated signage stating:

Minimum \$1,000 fine

Escalating penalties

Subject to Tribal Court jurisdiction

Section 6. Severability

If any provision is invalid, remaining provisions remain in effect.

Section 7. Effective Date

Effective immediately upon adoption.

CERTIFICATION

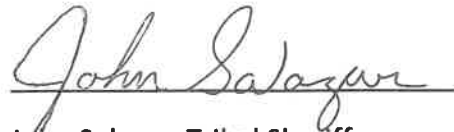
I, the undersigned, as Governor of the Pueblo of Picuris, hereby certify that the Pueblo of Picuris Tribal Council, at a duly called meeting convened on the 13th day of March, 2026, at the Pueblo of Picuris, at which a quorum was present, approved the foregoing Resolution, and that 6 voted for, 0 were absent, and 2 were opposed.



Craig Quanchello, Governor



Gary Pyne, Lt. Governor



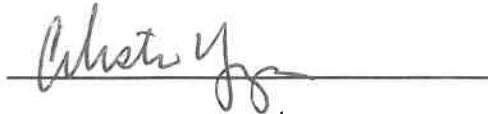
John Salazar, Tribal Sheriff



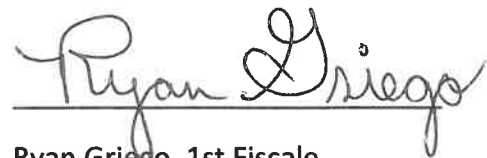
JD Martinez, 1st War Captain



Jordan Fragua, 2nd War Chief



Celestino Yazza, 3rd War Chief



Ryan Griego, 1st Fiscale



Mike Simbolo, 2nd Fiscale

ATTEST:



Racheal A. Pyne, Tribal Secretary

SEAL